

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

THOMPSON PIPE GROUP, INC.
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

DECLARATION OF DAVID IKEMOTO

I, David Ikemoto, declare as follows:

1. I am the former Director of International Operations for Epic Freight Solutions LLC (“Epic”), a transportation and logistics service provider. I am currently employed by Omni Logistics, LLC with the same title.
2. I am competent and capable of making this Declaration.
3. I have personal knowledge of the statements contained herein.
4. I am familiar with the Shipping Agreement, Customs Power of Attorney, and incorporated Terms and Conditions (collectively, the “Contract”) attached hereto as **Exhibit 1**.
5. The Contract does not identify Epic as a “common carrier.”
6. No applicable ocean bill of lading identifies Epic as a “common carrier.”
7. Certain shipping paperwork refers to Epic as a “notify party,” “consignee,” or “destination agent.”

8. Since 2015, Epic has provided certain indirect air carrier services, customs brokerage services, and surface freight forwarding services on behalf of Thompson Pipe Group, Inc. (“Complainant”) or other related corporate entities such as TPG Pressure Inc.

9. At various points in time when Complainant requested that Epic coordinate ocean transportation services, Epic retained foreign agents, which in turn engaged ocean carriers or NVOCC to ship Complainant’s goods by ocean.

10. Epic has not performed any NVOCC nor any “common carrier” services on behalf of Complainant.

11. Epic never issued an ocean bill of lading to Complainant.

12. After Omni acquired Epic, Omni began performing some back-office administrative services in connection with the Contract. Beginning in or around January 2022, Omni began issuing invoices for services rendered by Epic to Complainant under the Contract.

13. On a few occasions, Omni arranged for domestic drayage services on behalf of Complainant.

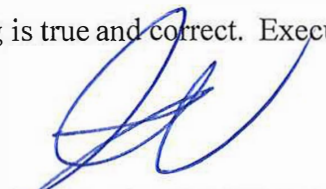
14. The majority of the invoices Omni has issued to Complainant on Epic’s behalf were issued before June 16, 2022. (See list of invoices issued prior to June 16, 2022, attached hereto as **Exhibit 2**).

15. Omni’s invoices do not relate exclusively to detention and demurrage charges.

16. Omni has invoiced Complainant for a variety of services as well as out-of-pocket expenses incurred on Complainant’s behalf.

17. Since Omni acquired Epic in April 2021, Omni has not performed any ocean transportation services for Complainant, nor issued any ocean bill of lading to Complainant.

I declare under penalty of perjury that the foregoing is true and correct. Executed on this 24th day
of January 2023:



David Ikemoto